

		Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
2	Crawley, et al. v. Rise Energy, LLC, et al. 2023-01336866	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$875,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the August 21, 2025 order (ROA 111), the court stated: <u>"If required, an amendment to the settlement agreement is directed, rather than 'amended settlement agreement,' to streamline the court's review."</u> 8/21/25 Order (ROA 111) (underlining in original). For unknown reasons, the parties prepared and submitted an amended settlement agreement. 2. Were the supplemental papers served on the LWDA? The proof of service (ROA 123) does not include the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiffs served the documents, and how service was effected. <u>As to the settlement:</u> 3. In the August 21, 2025 order (ROA 111), the court stated that plaintiffs should provide each named plaintiff's anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). Do any of the named plaintiffs anticipate receiving any compensation for any individual claims? 4. In the August 21, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad, as it included several

		unidentified, ambiguous and/or unrelated third parties. The "Released Parties" provision in the amended settlement agreement remains overbroad. The ambiguous word "affiliates" should be removed. There is also a stray " . " at the end of paragraph 1.41 of the amended settlement agreement. 5. The settlement administrator states that settlement administration fees will not exceed \$16,950. Mullins Decl. (Ex. A to ROA 128) ¶ 22 & Ex. C. Paragraph 3.2.3 of the amended settlement agreement and section 3(2)(C) of the notice should be revised accordingly. If, as plaintiffs' counsel states, the potential exists for the number of class members to be "significantly higher" (Supp. Brief (ROA 125) at 4:8), why aren't those individuals in the class now? 6. In the August 21, 2025 order, the court stated that it is unlikely to approve attorneys' fees in excess of 25% of the gross settlement amount absent unique circumstances, and that plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. ROA 111. As plaintiffs' counsel "do not allege that their work in this action involved or required 'unique circumstances,'" the court preliminarily finds attorneys' fees not to exceed \$218,750 to be reasonable for this case. 7. In the August 21, 2025 order, the court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action and, in some circumstances, to recognize their willingness to act as a private attorney general and the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. ROA 111. Plaintiffs state in the supplemental brief that "[t]he reference to the enhancement payment being consideration for the general release has been removed from each declaration of the Plaintiffs." <i>Id.</i> Notwithstanding that this statement is incorrect (see Carraway Decl. (ROA 129) ¶ 10; Crawley Decl. (ROA 130) ¶ 10; Davis Decl. (ROA 131) ¶ 10), the alleged removal of the statement from plaintiff Taylor's declaration does not negate the representation by plaintiffs' counsel that "because [the named plaintiffs] are to receive this enhancement payment, [they] are entering into comprehensive releases of all claims, known and unknown, unlike the rest of the Class Members." Ellison Decl. (ROA 99) ¶ 32. The court will not approve a settlement that provides an enhancement award in exchange for a general release. In addition, as plaintiffs do not contend "there are 'unique circumstances' with respect to the duties" they performed
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		with regard to this action (see 8/21/25 Order, ROA 111), to the extent enhancement awards are appropriate in this case (as discussed above), the court preliminarily approves an enhancement payment of no more than \$2,500 to each of the named plaintiffs, for a total amount of \$10,000. 8. Defendant's counsel states counsel is aware of another case, <i>Reid v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0019188. Lambert Decl. (ROA 120) ¶¶ 2-3. Defendant's counsel does not state the effect of the settlement in this case on the <i>Reid</i> case. See 8/21/25 Order (ROA 111) No. 23. Plaintiffs' counsel states counsel is aware of two other cases, <i>Adkins v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0013650, and <i>Kinna v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0013623. Plaintiffs' counsel states he is unaware of the effect of the settlement in this case on the <i>Adkins</i> and <i>Kinna</i> cases. Both plaintiffs' and defendant's counsel should undertake to determine the impact, if any, of the settlement in this case on the <i>Reid</i>, <i>Adkins</i> and <i>Kinna</i> cases and must file declarations describing any such impact. 9. Is there a release for participating class members who are also aggrieved employees? 10. Paragraph 7.8.4 of the amended settlement agreement should be revised to conform to paragraph 7.6. 11. Pages 15 and 16 of the amended settlement agreement appear to be missing paragraph numbers. <u>As to the notice:</u> 12. The notice should be revised consistent with the above. 13. The word "already" should be removed from the first sentence of the fifth paragraph on page 1 of the notice. 14. The fifth sentence should be removed from the fifth paragraph on page 1 of the notice. 15. The last two sentences of section 4(3) of the notice should be revised to conform to paragraph 7.6 of the settlement agreement. See 8/21/25 Order (ROA 111) No. 37. 16. The methods of submitting exclusions and objections should be stated in sections 6 and 7, respectively, of the notice. See 8/21/25 Order (ROA 111) No. 36. 17. Sections 4(3), 6 and 7 should be revised to address the dispute, exclusion and objection forms, respectively. See 8/21/25 Order (ROA 111) No. 33. 18. The bolded sentence in the second paragraph of section 7 of the notice ("The deadline for sending written objections
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